

Dispute Chamber

Implementation Decision 145/2024 of November 27, 2024

File Number: DOS-2023-03279

Subject: Cookie banners on Mediahuis websites – confirmation of execution of orders in Decision Dispute Chamber 113/2024 of September 6, 2024

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, and Messrs. Christophe Boeraeve and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG";

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, represented by noyb – European Center for Digital Rights (Austria), hereinafter "the complainant" or "complaining party";

The defendant:

Mediahuis NV, represented by Mr. Jan CLINCK, Mr. Pierre ANTOINE, and Mr. Gerrit VANDENDRIESSCHE, hereinafter "the defendant".

The Market Court has annulled Decision 113/2024 of the Dispute Chamber of September 6, 2024.

Consequently, this decision becomes moot.

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I. Facts and Procedure

1.

The Dispute Chamber refers to its Decision 113/2024 of September 6, 2024, regarding measures concerning the cookie banners on the news websites of Mediahuis (websites De Standaard, Gazet van Antwerpen, Het Belang van Limburg, and Het Nieuwsblad), including the factual account, reasoning, and dispositive contained therein.¹

2.

The present decision solely concerns the execution of the orders in the aforementioned decision.

II. Reasoning

II.1. Relevant Context: Appeal Against Decision 113/2024 to the Market Court

3.

Mediahuis NV has lodged an appeal against the aforementioned decision by petition to the Market Court (Court of Appeal Brussels, Section 19A) filed at the registry on October 4, 2024. The appeal is currently pending under roll number 2024/AR/1690. The hearing is scheduled for January 22, 2025. The complainant has intervened in the appeal procedure through its representative – who is in turn represented by her legal advisors – and is thus aware of the further procedural developments.

4.

For clarity, it should be reiterated that the request by Mediahuis NV for a suspension of the enforceability of the aforementioned decision (as a requested measure prior to judgment in the sense of Article 19, paragraph 3 of the Judicial Code) was rejected by interim judgment of the Market Court on November 6, 2024.

5.

In the context of the procedure before the Market Court, the Data Protection Authority ("GBA") had committed to suspending the execution of the decision, subject to all reservations, from the date of the

introductory hearing before the Market Court (on October 16, 2024) until after notification of the judgment to the legal advisors of Mediahuis NV. This was explicitly communicated to the parties in the administrative procedure by email on October 18, 2024, as well as acted upon by the Market Court in the aforementioned interim judgment of November 6, 2024 (in §13).

6.

Following the same interim judgment of November 6, 2024 – in order to eliminate any ambiguity regarding this matter in light of transparency and legal certainty – the Dispute Chamber subsequently informed the parties by email on November 7, 2024, that the 45th day referred to in the decision would fall on November 16, 2024. The

1 The Decision has since been published on the GBA website as mentioned in the decision:

<https://gegevensbeschermingsautoriteit.be/publications/beslissing-ten-gronde-nr.-113-2024-van-6-sep-tember-2024.pdf>.

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intended in the aforementioned Decision 113/2024. The legal advisor provided several screenshots depicting the existing situation regarding the cookie banners on the four disputed websites at that time.

10. The four screenshots submitted by the legal advisor of Mediahuis NV are as follows, analogous to the described websites in paragraph 1 of the aforementioned decision:

a) For the disputed website of "Gazet van Antwerpen"

b) For the disputed website of "De Standaard"

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c) For the disputed website of "Het Nieuwsblad"

d) For the disputed website of "Het Belang van Limburg"

II.3. Assessment of the Execution of the Orders in Decision 113/2024

11. The defendant has fully and unequivocally complied with the letter of each order for each disputed website as referred to in the aforementioned Decision 113/2024 of the Dispute Chamber.

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12. This naturally implies that the penalties, as an accessory to the two orders for the four disputed websites provided in the aforementioned decision, are not declared forfeited.

III. Publication of the Decision

13. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority, just like Decision 113/2024 of September 6, 2024, to which this implementation decision pertains.

14. Considering that the respondent is a media company of considerable size and societal reach, and given that the personal data processing activities concern a significant portion of the Belgian and, more broadly, Dutch-speaking population, the Dispute Chamber finds it appropriate to disclose the identity of the respondent as well as the names of the disputed websites, just as in Decision 113/2024, to the public. This is also in accordance with the transparency practice that the Dispute Chamber has employed in similar procedures involving comparable actors in the media sectors that led to settlement decisions, although in those procedures no effective violations were determined, nor were enforcement measures imposed.